

“Bounded Equity: The Limits of Economic Models of Social Justice in Cannabis Legislation”

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Abstract

Social equity provisions in cannabis legislation are premised on the hope that the profit generated around adult-use cannabis can be leveraged to ameliorate the damage done by racially biased enforcement of prohibition in black and brown communities. As such, they encapsulate an attempt to reconcile the history of racism in the enforcement of cannabis law through its new future as a profit generating commodity. These programs are gaining traction, but with minimal empirical examination. The development and implementation of these programs raises a number of questions in need of study that we outline in this paper. We argue that Creary's concept of *bounded justice*—which critiques the inherent limitations of social justice projects that ignore structural forms of social exclusion—can provide a framework for critical understanding of the limitations of such programs, ethnographically grounded empirical research, and a framework for evaluating the justice impacts of legislation. Specifically, we argue that in order to interrogate the possibilities for social justice projects around cannabis, we must address equity at a deeper level by working with communities to investigate hyper-localized and historical factors that have influenced systems and structures.

Keywords

social justice, cannabis, marijuana, social equity, ethnography, legalization

Cannabis commercialization in the United States is opening up new spaces for empirical investigations around both social justice and the impact of these new adult-use markets¹; however, there is little research at the intersection of the two. Social equity provisions are a novel feature of recent cannabis legalization legislation in the United States. These provisions aim to encourage participation in the adult-used cannabis industry by people from communities that have been disproportionately impacted by prohibition and enforcement. While the programs vary from state to state, they include programs

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Table 1. Status of Social Equity Programs in States That Passed Adult-Use Cannabis/Marijuana Legalization and Adopted a Commercial Approach.

States	Legalization Passage Year	Social Equity Program	Included in Original Legalization Policy
Alaska	2014	No	NA
Arizona	2020	Yes	Original
California	2016	Yes	Post hoc
Colorado	2012	Yes	Post hoc
Illinois	2019	Yes	Original
Maine	2016	No	NA
Massachusetts	2016	Yes	Original
Michigan	2018	Yes	Original
Montana	2020	No	NA
Nevada	2016	No	NA
New Jersey	2020	Yes	Original
New York	2021	Yes	Original
Oregon	2014	No	NA
Vermont	2018	No	NA
Washington	2012	Yes	Post hoc
New Mexico	2021	Yes	Original
Missouri	2022	Yes	Original
Rhode Island	2022	Yes	Original
Connecticut	2021	Yes	Original
Maryland	2022	Yes	Original
Virginia	2021	Yes	Original

such as reduced fees, special classes of licenses, financial support, and professional development. These provisions are premised on the hope that the profit generated around adult-use cannabis can be leveraged to undo the damage done by racially biased enforcement of prohibition in black and brown communities. As such, they encapsulate an attempt to reconcile the history of racism in the enforcement of cannabis law through its new future as a profit generating commodity. While the programs are gaining traction, there is a dearth of empirically grounded research on their implementation. In this paper, we argue that these programs, and the early indications of the difficulties of implementation, are a key example of the way that social justice programs are often bound by embedded racism. We argue that they are a key site for locally grounded ethnographic and qualitative social science research attentive to the bounded nature of equity work.

The market-based social equity clauses examined in this article make an explicit connection between two different statuses of cannabis: as a prohibited object driving high rates of racial inequity in arrests and incarceration, and as a legal commodity that can drive the production of new economic markets and wealth. Rhetoric supporting social equity clauses argues that the benefits of the latter should be distributed in a way that acknowledges the harm of the former, thus making a hybrid moral-economic-social justice argument that this article will both unpack and lay forth an empirical strategy for examining. For example, the Drug Policy Alliance (2017) states the following:

A primary strategy for repairing these inequities is to create opportunities for low-income, black, and Latinx people to obtain an equitable stake in the legal marijuana market. These policy recommendations are designed to best promote equitable ownership and employment opportunities in the marijuana industry. (p. 1)

In 2017, Massachusetts became the first state to require that their Cannabis Control Commission develop a program to increase participation in the adult-use cannabis market by individuals from communities deemed disproportionately harmed by cannabis prohibition (“An Act to Ensure Safe Access to Marijuana,” 2017). Since Massachusetts’ adoption, more states have passed and implemented social equity policies and programs that expand upon Massachusetts’ initial design, which focused on licensure prioritization and training/technical assistance programs (see Table 1). As of 2021, 10 of the 16 states with legalized adult-use cannabis are developing or have created social equity initiatives. This includes two states, Colorado and Washington, that passed their adult-use cannabis law prior to Massachusetts’ 2016 legalization.

While the criteria qualifying certain persons or populations as eligible for social equity programs varies across states, the programs generally assign eligibility either on the basis of residency in a disproportionately impacted community, or to individuals or family members of individuals with a cannabis conviction. Notably, neither race nor ethnicity is a criterion for eligibility, even though racial disparities are the animating force behind these programs. In 2018, a race-conscious social equity program for medical cannabis in Ohio was challenged and then struck down under the Equal Protections clause of the Fourteenth Amendment to the United States Constitution. The Supreme Court of the United States has held that race-based classifications are inherently suspect and can only be considered in cases of compelling government interest—which the judge in Ohio ruled did not exist (*Pharmacann Ohio, LLC, vs. Ohio Dept. Com. Dir. Jacqueline T. Williams*, 2018). As we discuss, the absence of racial or ethnic criteria creates a tension between how these programs are implemented and evaluated. The social equity programs themselves generally involve some combination of licensure prioritization² in which social equity status is considered as a component in the review and allocation of the limited number of cannabis licenses; financial support³ through reduced licensure fees and/or grant programs or low interest loans; or business development programs⁴ which provide training to persons interested in owning a cannabis business or seeking employment in the cannabis industry. Social equity programs are not the only social justice mechanism incorporated into cannabis legislation. There are also programs to expunge criminal records and programs that earmark tax revenue for social justice programs. These programs are equally in need of empirical work. However, we argue social equity programs aiming to increase participation in the cannabis marketplace are specifically illustrative of the concept of bounded justice.

While many social equity programs are institutionalized at the state level, local jurisdictions have also emerged as a key site for the development and deployment of these programs. For example, in California there is no centralized social equity program. Rather, the California Cannabis Equity Act of 2018 authorizes grant funding for locally designed and implemented programs. And in other cities, such as Detroit, supplemental social equity programs have been passed by city councils to strengthen state initiatives (Homegrown Detroit). In addition, even with the centralized development and administration of many social equity initiatives, all programs must interact with the panoply of local policies that govern local cannabis markets. We argue that the significance of local jurisdictions to enact social equity programs makes them ideal sites for grounded qualitative and ethnographic work.

This article echoes the call from critical race theorists, social science, and public health scholars that meaningful interventions must address the racialized social structures that perpetuate racism, and not simply make gestures toward equity (Bonilla Silva, 1997; Cross, 2018; Ford & Airhihenbuwa, 2010). What is more, we argue that empirical engagement with social equity initiatives must examine the limits of these programs, which are often so narrowly targeted and limited in scope that they are unable to address the deeper social inequalities that structure their possibility. In this article, we lay out the argument that there is a need for locally grounded research and argue that Creary’s (2021) analytic framework of *bounded justice* can direct critical social science inquiry into these social equity programs. Creary argues that programs aimed at social justice, equity, and inclusion are often designed with a focus on vertical equity, which attempts to distribute resources fairly and justly but fails to take

into account the social and historical constraints that fundamentally bind justice through the cumulative effects of marginalization. While Creary's framework was developed around a critique of health equity programs, which must contend with the embodied effects of racism on health, we argue that its fundamental attention to how systemic inequality undoes limited programs makes it of critical use here. Moreover, the framework allows for empirical work that addresses the very problems of policies themselves. Creary argues that the design evaluation of these programs must be based upon a deep engagement with stakeholders that takes into account the way that histories of marginalization play out in specific context. In short, there needs to be work that addresses the barriers that these policies face in drafting and implementation, but that also assesses and makes possible programs that might do more.

In this paper, we provide an overview of the emergence of social equity programs in the contexts of increased public and scholarly attention to the racial inequities in enforcement of cannabis prohibition, as well as the current critiques and empirical engagements that exist in the literature. However, as we will discuss, there is very little research on the implementation and design of these programs. Drawing upon bounded justice, we outline three areas of inquiry: the problems of vertical equity frameworks, the significance of local communities, and the need for a justice framework for assessing cannabis legislation as a whole. Fundamentally, we argue that equity programs should not be assessed only through large scale quantitative assessments, which can reinforce top down modalities, but must be examined through grounded empirical research that pays attention to the localized ways that equity is worked and reworked, implemented, interpreted, and developed in different contexts. Thus, we argue for the development of a bounded justice framework that can be used to both assess and improve these programs through sustained engagement with local communities and the particular histories that shape marginalization.

Cannabis, Mass Incarceration, and the New Adult-Use Markets

Social equity programs, we argue, are caught up in a shifting relationship between the state and cannabis—from an object that was fundamental to the rise in racially biased incarceration and toward a profit generating commodity. Alexander's (2012) landmark book, *The New Jim Crow: Mass incarceration in the age of color blindness*, drew public and scholarly attention to how the war on drugs ushered in a new era in the disenfranchisement of African Americans in the United States. Alexander (2012) charts how the United States entered a new era of the racial caste system through which criminality is the central mechanism. Starting in the Reagan era of the 1980s and continuing forward into the Clinton era, police departments were provided with increased federal funding tied to the use of military grade equipment and training in new tactics and policies, such as Operation Pipeline, that emphasized a volume approach to drug enforcement. These policies prioritized increasing the number of investigatory stops and searches, and thereby arrests for any level of possession (Epp & Haider-Markel, 2014). The logic was to sweep up as many people as possible to increase the chances of finding drug dealers. These policies were supported by a series of Supreme Court rulings which weakened 4th Amendment protections against unreasonable search and seizure by the government. No longer did police require a warrant, or even reasonable suspicion to conduct a search of individuals person or automobile, they only need consent to stop and search an individual.

A robust scholarly literature has built out the empirical connections between these policies and the massive rise of incarcerated individuals in the United States along racial lines. Numerous researchers have charted how a new set of policing tactics, legislative policies, funding, court rulings not only massively expanded the prison population but also exacerbated racial inequalities. More specifically, the criminalization of cannabis is a substantial contributor: Cannabis arrests accounted for around 80% of the growth of the arrests (King & Mauer, 2006). This staggering statistic gains greater significance when paired with research on the racial breakdowns of cannabis use and selling. While studies have found that cannabis use is equal across racial groups (Johnson et al., 2015; Pacek et al., 2012) that fact

is not reflected in arrest rates where black people remain nearly four times as likely than white people to be arrested for cannabis possession (American Civil Liberties Union, 2010, 2020). The coupling of these two facts—use and arrest—has been used to make visible how cannabis prohibition has played a central role in the rise of racial inequities in prison populations, and as Alexander (2012) points out, the disenfranchisement en masse of African Americans. As Alexander (2012) forcefully argues, the damage is not simply from time in prison, but from the denial of rights and benefits after prison—from voting and employment to housing and public benefits—that traps people in cycles of incarceration (Curtis, 2013; Justice Center; Lerman & Weaver, 2014; National Conference of State Legislatures, 2021; Smith, 2020). All of which, we argue, needs to be considered in assessments of the justice impact of cannabis social equity programs.

While they were not present in the initial wave of adult-use legalization legislation, social equity clauses are being introduced post hoc in some states and are becoming routine in the new wave of legislation being approved. The demonstration of empirical linkages between the war on drugs, cannabis, and “disproportionate effects” on communities of color has become a political fact and has premised the rise of market focused equity provisions in new legislation. It is important to situate these clauses within the larger frame of tax and revenue legislation models that emphasizes the potential revenue that can be generated for state and local municipalities through the legalization of cannabis markets (Caulkins et al., 2015; Kilmer, 2020). In this vision, cannabis has become a value generating commodity. Equity policies seek to intervene in these markets and leverage the revenue created around cannabis as legalized-commodity to address the damage of cannabis-as-prohibited object.

There is an emerging literature addressing the issues that we highlight. Legal scholars have been attentive to the issues involved in equity programs, highlighting potential “opportunities, puzzles, and trade-offs” of programs that aim to assuage prohibition caused injuries by encouraging cannabis market entrepreneurship (Kilmer et al., 2021). Scholars have argued that social equity clauses should target systemic barriers curtailing black and brown cannabis market participation, which stem from, among others, disparities in access to capital (Bender, 2016; Harris & Martin, 2021; Howard, 2020; Mize, 2020), zoning laws (Holmes, 2019), background check requirements (Danquah-Brobby, 2017; Mize, 2020; Rahwanji, 2019), and preference for existing legal market participants (Howard, 2020; Orenstein, 2020; Vitiello, 2019). Yet, this literature also calls out, as do we, the inherent limitations of harm correction through an economic model. Scholars have examined the legal viability of priority licensure programs that tie an economic “leg up” to racial, geographic, or criminal legal characteristics (Brown, 2019; Sheppard, 2020). Further, the number of people who will potentially benefit from cannabis entrepreneurship is meager in comparison to the number who may benefit from other programs, like criminal record relief and employment within the cannabis industry (Kilmer et al., 2021). Importantly, the literature points out that the way the cannabis markets are designed may minimize the impact of social equity programs by favoring large businesses that are less likely to be minority owned (Kilmer & Neel, 2020). Finally, scholars note that the lack of guidance from the federal government has made it difficult for states to extend licenses to people with cannabis convictions out of deference to federal law (Mallinson et al., 2020).

While the legal literature identifies key areas for investigation, there has been very little empirical work connecting these issues to the actual development of adult-use markets and equity programs. Other researchers have noted a lack of rigorous evaluations of minority participation (Adinoff & Reinman, 2019). An exception is a recent study of racial disparities in cannabis business leadership and ownership that has identified racial inequalities in these businesses in Massachusetts despite the existence of a social equity program (Doonan et al., 2022). Scholars have outlined different prospective frameworks for assessing social justice amidst cannabis legalization (Adinoff & Reinman, 2019), in some cases providing tools specifically designed to assess social equity programs (Nani, 2019), and in others outlining criteria for designing policies with social equity in mind (Kilmer, 2019). In our review of the literature, we didn’t find any mention of qualitative research. However, one article

mentioned using qualitative interviews to develop a tool for assessing the impact of social equity programs but did not discuss the results of the interviews (Nani, 2019).

Yet none of these literatures discuss how harm correction through an economic model perpetuates a racism that blames racial inequities on individual behaviors and traits instead of structural and historical conditions. Social equity programs envision cannabis entrepreneurship rectifying the social and economic harms of prohibition via *individuals* who are being “empowered” to participate in the cannabis market. However, as we argue, this market-oriented approach ignores the social and historical factors that resulted in inequitable harm in the first place.

We want to pause over this alignment and raise the question of how empirical work can identify what binds justice in this framework. While the pairing of cannabis’ status as a key driver of the carceral state and its emerging status as a legal commodity has made possible a social justice argument, it is worth reflecting on the location of justice: the market. These policies acknowledge the harm caused by cannabis as a carceral object, but then focus on the market as the site of restorative justice. As we will outline in the following sections, empirical work on equity in cannabis markets must also attend to the other possible visions of equity that are being developed in different locations. Another version of justice, a more robust vision, might be for the state to acknowledge the damage of prohibition policies, and to begin to build a reparations policy that operates irrespective of the success of cannabis-as-legal commodity.⁵ Instead, what is taking shape at this moment is a set of equity clauses that attempt to link the two and which tether the viability of equity clauses to the success of individuals in the market. They crucially assume not only those markets can be made to work in equitable ways—an assumption that we argue needs to be further investigated—but it also inscribes equity and justice within the longstanding narratives of bootstrap entrepreneurship. In short, what we are witnessing is the market taking the place of the government as the gatekeeper to equity.

What Bounded Justice Can Offer

While emerging analyses have indicated that black and brown people are marginalized from profits generated by commercial cannabis (Analytic Insight, 2020; Doonan et al., 2022; Doonan et al., 2020; Lewis, 2016; Marijuana Business Daily, 2017), we argue that analysis of licensing data is limited in its ability to give insight into the complex mechanisms by which groups are excluded—particularly within programs that are intended to boost inclusion. While the intent of social equity endeavors is to institute *fairness* within legalized cannabis markets, these intentions are disconnected from deep, localized, empirical understandings of the social barriers surrounding legalized markets, as well as the views and experiences of those trying to enter them. In this next section, we lay out an empirical agenda framed by the concept of Creary’s (2021) *bounded justice* that is intended to better understand both the specific mechanisms that bind social equity programs within legalized marketplaces and the views of stakeholders involved. In this sense, *bounded justice* is a diagnostic framework that allows us to ask questions about the localized social and historic mechanisms that curtail equity work and to evaluate and design social equity programs with these localized perspectives in mind.

Creary (2021) argues that in response to injustice, particularly among marginalized populations, policies or interventions are often designed to address specific indignities—such as the provision of genetic technologies for a historically neglected disease population like those living with sickle cell. These technologies, policies, or interventions, however, frequently fail to recognize how the beneficiaries have historically embodied the cumulative effects of marginalization, which undermines the effectiveness of the intended justice. As Creary (2021) writes, “*Bounded justice*, then, suggests that it is impossible to attend to fairness, entitlement, and equity when the basic social and physical infrastructures underlying them have been eroded by racism and other historically entrenched-isms” (p. 242). *Bounded justice* thus calls attention to the central tension around social equity programs. Even as equity programs acknowledge how entrenched racism has been reinforced through drug

prohibition, by attaching their success to the market these programs are still bound by all the forms of racial inequity that shape social possibilities. In the following sections, we draw upon three key components of Creary's (2021) framework to illustrate what a bounded justice approach to social equity in cannabis commercialization might look like. First, *bounded justice* calls attention to the way that vertical equity programs are doomed to fail because they do not consider the accumulated injustice that binds their attempt at equity. Second, efforts at equity and justice need to account for the localized ways that racism and inequality are embedded and engage with local stakeholders in order to understand these dynamics. Third, there is a need for a justice framework that holistically evaluates the impact of cannabis legislation broadly and not just equity policies narrowly.

Illinois: The Failures of Vertical Equity

When the Illinois state legislature passed the Illinois Cannabis Regulation and Tax Act in 2019, it was to date the most progressive social equity program enacted. To address barriers to entering the marketplace, the act included several mechanisms for boosting participation from "disproportionately impacted communities": a protected class of licenses, reduced licensure fees, and low interest loans. However, the initiation of the program has been mired in lawsuits and controversy, which point to the social and legal complexity of enacting these initiatives, as well as the perils of designing narrow programs with a vertical focus.

The initial plan was for the distribution of a special pool of licenses via a combined application and lottery system. Social equity applications would be reviewed by a third party and those that met a threshold for qualification would then enter a lottery. However, the initial application process was complicated and cost intensive. Media reports indicate that some applicants hired consultants—some costing tens of thousands of dollars—to help write their applications (Pletz, 2019). When the results of the application process were announced, only 21 of some 700 social equity applicants had qualified for the lottery itself (Marotti, 2020; MJBizDaily Staff, 2021).

In response to public outcry, further legislation was passed that instituted three more rounds of lotteries to award licenses in 2021 (An Act Concerning Regulation, 2021). This new legislation removed a controversial clause that allowed groups to qualify for the social equity lottery through the mere employment of individuals who qualified. While these later rounds of lottery seem to be more successful in meeting the equity goals, they have also spawned their own lawsuits from out of state firms excluded from participation. What is more, there are media reports that winners of these lotteries are considering selling off their licenses rather than moving forward with the costly process of starting a business (Schuba, 2021). Not only are the barriers to entry high, but as critics have pointed out, the largely white owned medical cannabis businesses were allowed to apply directly for adult-use licenses, thus giving them a significant advantage in establishing their businesses.

While on the one hand, the story of social equity in Illinois is far from over, on the other hand it is a prime example of how programs that focus on a narrow vertical concept of equity fail. As Creary (2021) explains, equity programs are framed in the popular imagination through metaphors of verticality, such as the popular image of people on crates trying to see over a fence, where some people need more crates to stand on. Equity programs, as Creary points out, focus on distributing crates, rather than removing the fence entirely. *Bounded justice* as a framework calls attention to the cumulative effects of disadvantage and racism—the fence—that structure the impossibility of vertical equity.

In the case of Illinois' social equity program, not only did the advantage go to the majority white-owned medical cannabis businesses, seriously undercutting any attempts at diversifying the market, there are many other locally embedded barriers tied to the specific history of racial segregation in Illinois that need to be examined. A *bounded justice* framework for approaching social equity programs begins not with the provisions but with an examination of the larger social system that binds attempts at social justice. As with health equity, where the effects of marginalization are embodied,

a *bounded justice* framework asks how does the specific history of racialized policing, segregation, and gentrification in Illinois, shape where cannabis businesses operate, who owns them, and who works in them? How do the very incentives of a profitable cannabis market run counter to an inclusive, diverse, and equitable market? What are the conflicts created by the fact that race is the measurement of the outcome of the programs, but not built into the programs themselves? In disturbing the very premise of vertical equity, *bounded justice* makes visible the many omissions that doom these efforts to failure.

Detroit: Multiple Visions of Equity

Like Illinois, Michigan legalized adult-use cannabis and created a commercial market in 2019 with a social equity clause—though not as robust as the one envisioned in Illinois. Michigan has provided a special class of licenses issued at the state level that have redacted licensing fees, as well as a business development program that provides support to social equity applicants. However, like in many states, local jurisdictions can opt out of the sale of adult-use cannabis. This power to opt out of adult-use cannabis is layered upon the control that local jurisdictions exert over business licenses more generally through mechanisms such as zoning restrictions. The control granted to municipalities to control the shape of adult-use cannabis—and by extension social equity—is an overlooked dimension of these programs. As we will illustrate, in the case of Detroit, it has provided the opportunity for different visions of equity to be articulated. The City of Detroit's attempts to make a more robust social equity program—one that directly benefits the residents of Detroit—illustrates the importance in the *bounded justice* framework of attending to specific histories of marginalization, as well as to the ways that stakeholders may work and rework visions of equity and justice.

While Detroit had long participated in the medical cannabis market, the city council temporarily resisted the opening of adult-use cannabis businesses within the city's limits (Gabriel, 2019). The council explicitly cited the fact that medical cannabis businesses were primarily owned by non-Detroiters. But in late 2020, the city council passed the Medical Marijuana Facilities and Adult-Use Marijuana Establishments ordinance, which included a clause for a Legacy Detroit program that would ensure that 50% of business licenses went to longtime Detroit residents, and that those residents would have priority in the review process, qualify for redacted fees, and be allowed to purchase city owned properties at substantially reduced rates (Detroit City Council Approves Adult Use Marijuana Ordinance, 2020). The Legacy Detroit program exists separate from the State of Michigan's social equity program, and applicants must still seek a license from Michigan's Cannabis Regulatory Agency (MRA). The Detroit Legacy program reflects calls by local activist groups for ownership and not just profit sharing to be the grounds of equity in cannabis. However, Detroit had to push moving forward with the Detroit Legacy Program due to lawsuits alleging that it is discriminatory toward non-Detroit residents (Neavling, 2021), and is currently trying to institute a second version of the program (Roberts, 2022).

Research guided by a *bounded justice* framework, would specifically attend to the ways in which local groups and stakeholders envision equity and attempt to rework equity. Rather than assume that equity is either met or not met through the execution of narrow legislative interventions, a *bounded justice* framework makes room for the possibility of multiple definitions of equity as well as creative attempt to meet those goals. The design of the Detroit Legacy program reflects the frustrations of the "economic revitalization" of Detroit being driven by white gentrification of the city (Apel, 2015; Partridge, 2021). And thus, it reflects a specific set of concerns by local stakeholders that are driven by the local history of property, race, and equity. Much like Illinois, it also reflects the difficulty in addressing racial inequality without addressing race, and the use of lawsuits to stymie efforts at equality.

Empirical Work Framed by Bounded Justice

The concept of *bounded justice* serves as a critique of programs and policies that seemingly mean well in their attempt to deliver justice to individuals who have suffered under the weight of structural racism but do little to recognize the cumulative effects of marginalization and social exclusion that have become embodied. *Bounded justice* calls not only also for empirical research, but also for the development of processes to evaluate equity programs. *Bounded justice* is also a framework to help guide methodological decisions about how we examine and evaluate these programs, so that policy makers can put forth interventions that address deep seated inequalities. In an essay that critiques the ways in which quantitative methods are deployed for public health disparity-based research, scholar Sullivan (2021) describes, “Bounded justice . . . does not start with individuals or even communities or demographic categories. Rather, bounded justice starts with the entrenched histories of racism, sexism, and other isms.” Sullivan (2021) draws upon bounded justice as part of a broader critique of the challenges of big data in her analyses on the epidemiology of sexually transmitted infections (STIs). In doing so, Sullivan (2021) points toward the limits of solely quantitative approaches for examining the impact of social equity programs. While evaluation of licensing data can be a part of an assessment of these programs, it is not enough on its own. Counting of licenses may call out racism but if not contextualized with a broader understanding of the deeply linked and local systems of oppression, it acts solely as a warning sign and falls short of (deepening) our understandings of the limits of social equity programming.

We argue that in order to do the evaluative work that social justice interventions require, it is necessary to use methodologies that allow for examining the historical and social depth of the issue. Qualitative methodologies like ethnography and oral history can help us to more deeply understand the mechanisms of inequity. Both of these methods capture the nuanced data from varied stakeholders needed to explain the tensions between embodied oppression over a life-course and the attempts at policy-driven equity, which may not be able to be neatly captured through quantitative work. According to Singh and Tripathi (2008):

Qualitative research uses unreconstructed logic to get at what is really real—the quality, meaning, context, or image of reality in what people actually do, not what they say they do. Unreconstructed logic means that there are no step-by-step rules, that researchers ought not to use prefabricated methods or reconstructed rules, terms, and procedures that try to make their research look clean and neat. (p. 488)

Indeed, racism and the havoc it wreaks are anything but neat. Methodologies like oral history capture information that cannot be gleaned from any other sources, and it gives voice to ordinary and often marginalized individuals whose stories might never have been documented otherwise. Oral history methods provide a glimpse into how people construct their worlds—what they believe, imagine, and value (Grele, 1991).

Bounded justice suggests that “there is a relational positioning between vertical equity (justice distribution) and how deeply we must dig to unearth the real needs of a community” (Creary, 2021, p. 253). Methodologies like these allow us to uncover just how deep inequities take root and bolster us with the tools to assess superficial programmatic band-aids. If social equity programs are designed to focus on the people and communities that have been disproportionately affected by arrests, then there is a need for research that addresses the views and experiences of these people and communities. Often these communities and individuals are being left out of the design of these programs. For example, Evanston, Illinois is using tax revenue from cannabis sales to fund a reparations program that distributes up to \$25,000 to qualifying black families to pay for either repairs to their homes or as part of down payments. However, then Alderwoman Cicely L. Fleming was the only councilperson to vote against the program. She argued that the program was rushed, had

not received meaningful input from the community, and that it lacked self-determination for the recipients, who should be able to choose how to spend the reparations (Fleming, 2021). Fleming's critiques highlight both the necessity for sustained dialog with impacted communities, as well as for nuanced social science research that examines the multiplicity of views. Fundamentally, we cannot assume that all people and communities share the same vision of equity. As we have argued, stakeholders, particularly those who these programs target, are necessary to help us consider what other forms of equity are at stake in these communities.

Bounded justice does not stop at qualitative stakeholder research but also calls for historicizing the connections between race and inequity in these communities. In order to avoid the trap of examining only the specific policy-based interventions at hand, we also need to examine the other systemic factors that bind justice in communities. Researchers should conduct a hyper-localized and historical analysis of race, place, and politics for each site. As Creary (2021) writes,

There is also a call for new language for the “interventions” designed for justice in health (equity). An intervention is usually time limited and seeks to change a specific behavior or habit. Due to the deep-rooted societal (pp. 252–253) forces bounded justice wants us to contend with, those of us invested in the work of unbinding justice must reframe our approach. (p. 253)

This might include an analysis of voting patterns, trends in city socio-demographics, funding decisions, infrastructural investment and disinvestment patterns, sustainability of past public health interventions, and assessment of general historical economic, political, and societal disparities within the community. This should be paired with discourse analysis of artifacts like local news articles, books about the locale, and city council minutes. The goal is to gain a better understanding of localized socio-politics of race and economic health.

Conclusion

As cannabis commercial legalization continues to ripple through the United States, more and more opportunities for empirical research are available. Social justice questions are and should be at the forefront of these projects. In this article, we have argued that the inherent limitations of social equity programs require research questions and methods that can pry beneath surface level assessments and interventions into inequality. In this conclusion, we would like to lay out several considerations for how this research can proceed, which highlights the need for long standing and ethical relationship with the community. Drawing from ethnographic methods and guidelines for Community Based Participatory Research (CBPR), we outline several key points of what an ethically grounded approach to bounded justice informed research would look like. First, ethnographic research is well suited to the emergent and shifting terrain around social equity and cannabis. Second, adequate resources need to be provided so that researchers can take the time to build the collaborative relationships that are necessary for ethically driven research.

As we have argued, ethnographic methods are distinct from other qualitative forms, of research, such as focus groups or qualitative interviews, in that they are focused on providing local and historical depth to investigations. While ethnographic methods have historically been glossed as giving insight into culture, recent, innovative developments have argued that ethnography can also provide key insights into quantitative driven inquiries in public health and inequality precisely through its ability to guide the kinds of research questions that get asked. While ethnography generates qualitative data, it can also be used to “ask better questions” (Roberts, 2021). Thus, ethnographic research is not an end in itself; but can be generative of future research. As social equity programs are debated, developed, and initiated, this generative approach can yield new approaches to for understanding how and to what end social equity programs are impactful.

Doing ethnography informed by bounded justice takes not only time, but also a framework that will not replicate socially exploitative practices. CBPR provides a key framework for data collection that has a reciprocal relationship with the communities that it engages with. CPBR guidelines call for engaging with local communities and stakeholders throughout the research process: from defining the research question, to empowering local stakeholders to participate in data collection, to disseminating research back to the community in a clear and useful manner. Fundamentally, CBPR requires ongoing relationships with a community (Schultz et al., 1998). Rapid grant cycles promote the quick collection and the fast publication of data. However, building relationships with a community takes time. Building research questions and methodologies through a reciprocal relationship with a community takes even more time. In order to develop research projects that do not mirror the social inequalities that they need to address, there is a deep need for funding mechanisms and considerations that provide researchers the resources required to design and conduct projects capable of collecting data in a rigorous and ethical manner.

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Notes

1. In this article we choose to use the term cannabis instead of marijuana. As many scholars and activists have pointed out, the term marijuana was popularized as part of a racist campaign in the early 20th century. Some states, including Michigan, are replacing marijuana with cannabis in their regulation. However, because the term marijuana has been in wide-spread use in scholarly literatures and legislation, it is difficult to avoid its use entirely. We have used it where a substitution with cannabis would be inaccurate or unclear. In addition, we follow legislation in using the term “adult-use” as distinct from “medical” legislation.
2. Illinois’s 2019 legalization initiative mandates that not less than 20% of all available points be awarded based on Social Equity Applicant criteria related to: disproportionate community residency, cannabis conviction status, and/or number of employees who meet either of the two aforementioned criteria. Colorado established the unique Accelerator Program where an Accelerator-Endorsed Licensee provides financial and/or technical support to a Social Equity Licensee to run an Accelerator Store, Production, or Cultivation Site. The Social Equity Licensee then operates the site on the same premise or on an alternative Accelerator-Endorsed Licensee provided location.
3. Several states have reduced application and licensure fees for certain populations, typically those that meet a disproportionately impacted criteria related to residency or a cannabis conviction. For instance, Michigan’s Cannabis Regulatory Agency reduced application and annual license fees by 25% for individuals residing in a disproportionately impacted community for at least five cumulative years of the last 10 years; persons with a cannabis-related misdemeanor or felony conviction receive a 25% and 40% fee reduction, respectively (Cannabis Regulatory Agency). In addition to reduced licensure fees, Illinois created the Cannabis Business Development Fund, which offers low-interest rate loans to Social Equity Applicants. Eligible expenses for loan coverage include rent, payroll, equipment and inventory purchases, regulatory compliance, legal expenses, employee training, professional services, and utilities (Social Equity Cannabis Loan Program).

4. Washington created the Marijuana Social Equity Technical Assistance Competitive Grant Program, which competitively awards social equity applicants funding to receive support on establishing and growing their cannabis business. Activities include assistance navigating the cannabis retailer licensure process, cannabis-business education and business plan development, regulatory compliance, and financial management training (Cannabis Social Equity Technical Assistance Grant Program). The Michigan Cannabis Regulatory Agency (CRA) developed a business resource directory that offers business and training resources for individuals and groups interested in establishing a cannabis business or working in the industry. The CRA social equity team also runs workshops to facilitate the development of skills useful in applying for, establishing, and sustaining a cannabis business (Business Resource Directory).
5. The City of Evanston in Illinois is experimenting with a reparations program to enable access to housing (City of Evanston).

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